

do not fall within the definition of “dependant” as given in Explanation after sub-section(3) of Sec.82-C of the old act 1890 and the meaning assigned to it under sec.2(d) of the workmen’s Compensation Act.

126. Interim relief by railway administration: (1) Where a person who has made an application for compensation under Sec.125 desires to be paid interim relief, he may apply to the railway administration for payment of interim relief along with a copy of the application made under that section.

(2) Where , on the receipt of an application made under sub-section (1) and after making such inquiry as it may deem fit, the railway administration is satisfied that circumstances exist which require relief to be afforded to the applicant immediately , it may, pending determination by the Claims Tribunal of the actual amount of compensation payable under sec.124 (or 124-A) pay to any person who has sustained the injury or suffered any loss, or where death has resulted from the accident , to any dependant of the deceased, such sum as it considers reasonable for affording such relief , so however that the sum paid shall not exceed the amount of compensation payable at such rates as may be prescribed.

(3) The railway administration shall, as soon as may be, after making an order regarding payment of interim relief under sub-section (2) , send a copy thereof to the Claims Tribunal.

(4) Any sum paid by the railway administration under sub-section(2) shall be taken into account by the Claims Tribunal while determining the amount of compensation payable.

Comment

Section 126 provides for giving interim relief by railway administration in case of accidents.

127. Determination of compensation in respect of any injury or loss of goods.- (1) subject to rules as may be made, the rates of compensation payable in respect of any injury shall be determined by the Claims Tribunal.

(2) The compensation payable in respect of any loss of goods shall be such as the Claims Tribunal may, having regard to the circumstances of the case, determine to be reasonable.

Comment

Section 127 provides for the manner in which the rates of compensation payable in respect of injury , compensation for any loss of goods shall be determined by the Claims Commissioner.⁵

Doctrine of estoppel does not arise in the case the petitioner is not a party to the disputed document. – The question of estoppel does not arise in view of the fact that the petitioner is not a party to the document and the respondent itself admitted that the guarantee was a mobilization of advance guarantee.

128. Savings as to certain rights : (1) The right of any person to claim compensation under Sec. 124 shall not affect the right of any such person to recover compensation payable under the workmen's compensation Act, 1923 ,(8 of 1923) or any other law for the time being in force; but no person shall be entitled to claim compensation more than once in respect of the same accident.

(2) Nothing in sub-section (1) shall affect the right of any person to claim compensation payable under any contract or scheme providing for payment of compensation for death or personal injury or for damage to property or any sum payable under any policy of insurance.

Comment

Section 128 saves the right of a person to claim compensation recoverable under any other law.

129. Power to make rules in respect of matters in this chapter : (1) The central Government may, by notification , make rules to carry out the purposes of this chapter.

(2) In particular , and without prejudice to the generally of the foregoing power. Such rules may provide for all or any of the following matters, namely :

- (a) the compensation payable for death;
- (b) the nature of the injuries for which compensation shall be paid and the amount of such compensation.

Comment

Section 129 empowers the Central Government to make rules for carrying out the purposes of Chapter XIII. The matters in respect of which rules shall be made by the Central Government are enumerated in detail in sub-section (2) of this section.

CHAPTER XIV

Regulation of hours of work and period of rest

130. Definitions : In this Chapter, unless the context otherwise requires :